

North Point-Morro Bay Homeowner Association v. County of San Luis Obispo, et al.,
23CV-0719

Hearing: Motions for Summary Judgment/Adjudication

Date: August 26, 2026

North Point-Morro Bay Homeowners Association (North Point or Plaintiff) filed a complaint to quiet title and for declaratory and injunctive relief on December 11, 2023. North Point amended its complaint on June 26, 2024, adding a petition for writ of administrative mandamus.¹

On August 20, 2024, North Point filed a second amended complaint to quiet title and for declaratory and injunctive relief and petition for writ of administrative mandamus (SAC).

The first and second causes of action allege causes of action for quiet title and declaratory relief against the County of San Luis Obispo and its Board of Supervisors (the County) and the City of Morro Bay and its City Council (the City).

The third and fourth causes of action make up the petition for writ of administrative mandamus and allege a violation of CEQA and abuse of discretion against the California Coastal Commission (the Commission) as respondent, and the County and City as real parties in interest.

North Point challenges a Coastal Development Permit (CDP) approved by the Commission on June 13, 2024, for the Morro Bay to Cayucos Trail Connector (the Project or MBCTC) and seeks to quiet title to the real property underlying Toro Lane, a minor roadway just west of Highway One that dead ends into the North Point natural area. Toro Lane serves ten private homes and—pursuant to a public easement dedicated to the City of Morro Bay—provides public access to a parking lot for beach goers as well as a natural area along the bluffs. (SAC, ¶¶ 1, 3.)

North Point alleges that in 2021, more than a decade after the Environmental Impact Report was completed, the County revised its plans for the MBCTC to run over the surface of Toro Lane instead of the Highway 1 right of way, without adequate analysis of the impacts to traffic and safety on Toro Lane or notice to the property owners. (SAC, ¶ 2.)

North Point further alleges that the use of Toro Lane would vastly overtax and exceed the limited scope and purpose of the public access easement and would interfere significantly with the rights of the North Point-Morro Bay Homeowners Association and its members who rely on Toro Lane as the sole access point to their homes. (SAC, ¶ 3.)

North Point also alleges that “Defendants’ assertion of right to unilaterally exceed the

¹ The California Coastal Commission had not considered the CDP at the time that the original complaint was filed against the County and City.

scope and purpose of the public access easement on Lot 12 by proposing to incorporate Toro Lane into the MBCTC is without right. [sic] Civ. Code § 806 (“[t]he extent of a servitude [including an easement] is determined by the terms of the grant, or the nature of the enjoyment by which it was acquired”); *Marlin v. Robinson* (1932) 123 Cal. App. 373, 377 (conveyance of a general easement for ingress and egress does not include the right to use the easement for any other purpose).” (SAC, ¶ 55.)

Now before the Court are competing motions for summary judgment/adjudication of the first and second causes of action for quiet title and declaratory relief filed by North Point on the one hand, and the County and City (collectively Defendants) on the other. The parties each oppose the others’ motion.

For the reasons set forth below, the Court finds triable issues of material fact and denies both motions.

I. Background Facts

a. 1993 CDP

In 1993, Frank Denis sought a Coastal Development Permit from the Commission to demolish the Point Motel in the City of Morro Bay and subdivide the land into 10 residential lots. (Defendants’ Undisputed Material Facts (DUMF) 1–2; Moroney Decl., Ex 23.) The site was at the north end of the City, west of Highway 1. (Moroney Decl., Ex 23 at Exs. C, G, I.) The lots were to be accessed using Toro Lane, which runs parallel to the shore and to Highway 1, and is the first street up from the ocean. (*Id.*)

The Coastal Commission granted the CDP for the subdivision subject to conditions, including three separate offers of dedication: a public access easement in favor of the City over Toro Lane (Lot 12), a one-acre public access lot dedicated to the City (Lot 11), and a two-acre public bluff and beach lot to be dedicated to the California Department of Parks and Recreation (Lot 13). (UMF 3, 5, 6, 35, 38, 43; Exs. P-004, P-005, P-006.) Lot 11 includes a parking lot with spaces for nine vehicles and provides access to Lot 13, which contains coastal natural resources and provides access to the beach via a stairway. (Exs. P-004, P-005, P-006.)

In May 1994, grantors Frank B. Denis, Sr., Vetra Denis, and B & F Denis, Inc., complied with the aforementioned conditions by recording irrevocable offers to dedicate easements in Lots 11 and 12 and fee title in Lot 13. (Exs. P-004, P-005, P-006) The easement over Lot 12 was accepted by the City in August 1994. (Ex P-007.)

North Point was formed on November 8, 2000, as a California non-profit mutual benefit common interest development corporation. (Ex P-002.) Grantors Frank B. Denis, Sr., Vetra Denis, and B & F Denis, Inc. transferred all of their interest in Lot 12 to North Point on June 7, 2001. (Ex P-001.) North Point is therefore the successor in interest to the original subdividers.

b. The Irrevocable Offer to Dedicate Easement for Vertical Public Access and Declaration of Restrictions (the Easement)

The Easement over Lot 12 provides that it was recorded as a condition of CDP number 3-93-01 granted on February 17, 1993, in accordance with the provisions of the Commission Staff Recommendation and Findings, attached to the Easement as Exhibit B and incorporated into the Easement by reference.

(Ex P-006; COUNTY_000265.)

The condition in the CDP, also recited in the Easement, provides that:

1. PRIOR TO TRANSMITTAL OF THE COASTAL DEVELOPMENT PERMIT, the applicant shall:
 - a. execute and record a document, in a form and content acceptable to the Executive Director, irrevocably offering to dedicate to a public agency or private association approved by the Executive Director an easement for public pedestrian and vehicular access to lot 11, the “coastal access natural area” to be offered to the city of Morro Bay. The document shall provide that the offer of dedication shall not be used or construed to allow anyone, prior to acceptance of the offer, to interfere with any rights of public access acquired through use which may exist on the property. Such easement shall be located along the entire length and width of the access road and any sidewalks provided on lot 12, from the southern end of lot 12 to lot 13, between the Highway One right-of-way and the residential lots' northeasterly property lines.

(Ex P-006; COUNTY_000265.)

After the initial recitals, the relevant portions of the Easement are as follows:

NOW THEREFORE, in consideration of the granting of the Permit to the Grantor by the Commission, the Grantor hereby irrevocably offers to dedicate to the People of the State of California, an easement in gross and in perpetuity over the Property as follows:

- I. DESCRIPTION. The easement offered hereby affects that portion of the Property along the entire length and width of the access road and any sidewalks provided on Lot 12, from the southern end of lot 12 to Lot 11, between Highway One right-of-way and the residential lots' northeasterly lines and as specifically described in EXHIBIT C, attached hereto and incorporated herein by reference.

- II. PURPOSE. The easement is for the purpose of allowing pedestrian and vehicular ingress and egress to and from the shoreline.**
- III. DECLARATION OF RESTRICTIONS.** This offer of dedication shall not be used or construed to allow anyone, prior to acceptance of the Offer, to interfere with any rights of public access acquired through use which may exist on the Property. After acceptance, Grantor shall not interfere with the public's use of the easement nor take any action inconsistent with such use, including, without Limitation, constructing or improving the Property within the easement area in manner inconsistent with the public's use or enjoyment thereof. Grantor shall not be bound to undertake any construction, maintenance or repair to provide for the public purposes hereunder. Grantor shall retain all normal rights and incidents of ownership of the underlying fee interest in the Property not inconsistent with the easement.

(Ex P-006, COUNTY_000266-267, emphasis added.)

Under the section for Duration, Acceptance and Transferability, the Easement provides:

Upon such recordation of acceptance, this offer and terms, conditions and restrictions shall have the effect of a grant of vertical access for pedestrian and vehicular ingress and egress easement in gross and perpetuity that shall run with the land and be binding on the heirs, assigns and successors of the Grantor.

(Ex P-006, COUNTY_000267.)

a. The Project

In 1972, California voters passed Proposition 20, the California Coastal Zone Conservation Act. This Act created the California Coastal Zone Conservation Commission and directed the Commission to prepare a study identifying goals and recommendations for the future of California's shoreline for the guidance of the Legislature. (*Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 162) The study, called the California Coastal Plan, was completed in 1975, and was used by the Legislature as a guide when drafting the California Coastal Act of 1976. (*Id.*, 33 Cal.3d at p. 163; see also Pub. Resources Code, § 30000 ["This division shall be known and may be cited as the California Coastal Act of 1976."].)

In 2001, the California Legislature made the completion of a California Coastal Trail a priority. (Pub. Resources Code, § 31408(a) ["The conservancy shall, in consultation with the Department of Parks and Recreation, the California Coastal Commission, and the Department of Transportation, coordinate the development of the California Coastal Trail."]; 2001 Sen. Bill No. 908 [an act to add Sections 31408 and 31409 to the Public Resources Code]; 2001 Cal. Legis. Serv. Ch. 446 (S.B. 908) (WEST).)

In 2024, the San Luis Obispo County Department of Parks and Recreation sought the CDP from the Commission to construct a multi-use public recreational trail to connect the City of Morro Bay with Cayucos (the MBCTC). (Moroney Decl., ¶ 2; Ex 18 [Staff Reports CDP 3-24-0020].)

The MBCTC was originally proposed to run along the Highway 1 Right of Way and did not include the surface of Toro Lane. (Ex P-008, County_000031.) The plan was changed after certification of the Final Environmental Impact Report by the County on October 19, 2010. (Ex P-008.) The proposed MBCTC now runs over Toro Lane and extends north to Cayucos along the coast. (Moroney Decl., ¶ 2; Ex 18, pp. 20-22; Ex. P-008.)

Plaintiff objected to the inclusion of Toro Lane as part of the MBCTC, arguing that the project would over-burden the City's Easement over Toro Lane. (Moroney Decl., ¶ 2; Ex. 18, p. 20.) The Commission considered the HOA's concerns and rejected them, finding that the Staff Report for the 1993 CDP, attached as Exhibit B to the Easement, states that the public access area would accommodate "unlimited pedestrian volume" and that "[c]learly, the purpose and intent of this Easement was to allow public access of the type proposed herein (i.e., a bike and pedestrian trail) along the length of the Toro Lane subdivision so that the public could freely traverse this area which is in line with the Coastal Act's mandate to maximize public access." (Moroney Decl., ¶ 2; Ex. 18, p. 22; see also Moroney Decl., ¶ 3; Ex. 19, pp. 1-3.) The Commission granted the CDP for the MBCTC with the conditions proposed by staff. (DUMF 86–89.)

The MBCTC runs over the surface of Toro Lane and includes markings and signage. (Ex. P-011, Ex. P-008, COUNTY_0026 (FEIR Addendum).) The trail is proposed to be 16 feet wide (expanded from an original proposal of 12 feet to accommodate anticipated traffic). (Exs. P-008, P-011.) Toro Lane is a dead-end street approximately 23- feet wide, with no sidewalks, and provides access to Plaintiff's members' residences. (Moroney Decl., ¶ 2; Ex. 18, p. 22; Levy Decl., ¶¶ 5, 7.)

IV. Evidentiary Objections.

Defendants object to certain evidence submitted by North Point in support of North Point's motion for summary adjudication. North Point responded to the objections.

The Court overrules Defendants' objection to Exhibit P-015.

Exhibits P-009, P-010 and P-016 were immaterial to the Court's decision below. (Code Civ. Proc., § 437c(q).

The Court sustains Defendants' objection nos. 1-7 to the declaration of Karl Levy.

Exhibit B to the Levy declaration (objection no. 8-9) was immaterial to the Court's decision below. (Code Civ. Proc., § 437c(q).

V. Request for Judicial Notice

The Court grants Defendants' unopposed request that it take judicial notice of Exhibit 13 pursuant to Evidence Code section 452(h), as requested, in support of their motion.

The Court grants Defendants' unopposed request that it take judicial notice of Exhibits 24-27 and 30-36 pursuant to Evidence Code section 452(b), (h), as requested, in support of their opposition to Plaintiff's motion.

The Court grants Plaintiff's unopposed request that it take judicial notice of Exhibits P-001 through P-008 and P-011 through P-015 pursuant to Evidence Code section 452(b), (c) and (h) as requested, in support of its motion.

As set forth above, Exhibit P-009 was immaterial to the Court's decision here; therefore, the Court need not take judicial notice of Eric Riddiough's employment. The Court denies Plaintiff's request for judicial notice of that fact on that ground.

VI. Legal Standard.

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary adjudication may be had as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, where the motion completely disposes of the cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Issues that do not dispose of an entire cause of action may only be adjudicated pursuant to the procedures set forth in Code of Civil Procedure section 437c, subdivision (t).

The moving party has the initial burden to make a prima facie showing that there are no triable issues of material fact and that it is entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

Plaintiff meets its burden of showing that there is no defense to a cause of action if Plaintiff has proved each element of the cause of action entitling it to judgment on the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).)

Defendants bear "the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto." *Aguilar, supra.*, at p. 850, citing Code Civ. Proc., § 437c, subd. (p)(2).) Defendants can satisfy their burden by presenting evidence that conclusively negates an element of Plaintiff's claim, or by showing through evidence that Plaintiff does not possess, and cannot reasonably obtain, needed evidence. (*Id.*, at pp. 854-855.)

If the moving party makes a prima facie showing, then the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (*Id.*, at

p. 850; Code Civ. Proc., § 437c, subd. (p)(2).)

The Court's sole function on a motion for summary judgment is issue-finding, not issue-determination; the Court must simply determine from the evidence submitted whether there is a "triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c); Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:270.) "The pleadings define the issues to be considered on a motion for summary judgment." (*Lowe v. Cal. League of Prof. Baseball* (1997) 56 Cal.App.4th 112, 122; see also *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253.)

VII. Discussion.

"The extent of a servitude is determined by the terms of the grant." (Civ. Code, § 806.)

"An easement agreement is subject to the rules of interpretation that apply to contracts. As with all contracts, the paramount goal of interpreting a writing creating an easement is to determine the intent of the parties. But it is fundamental that the language of a grant of an easement determines the scope of the easement." (*Zissler v. Saville* (2018) 29 Cal.App.5th 630, 639 (*Zissler*) [citations omitted].)

Defendants contend that the Court must show deference to the Commissions' interpretation of the Easement because the language is identified as a condition in the 1993 CDP, and because Standard Condition 4 of the CDP provides that any questions of intent or interpretation of any condition will be resolved by the Executive Director or the Commission. However, Defendants cite no authority where agency interpretation of an Easement or contract is granted deference. Nor do they cite any authority applying the deference standard at summary judgment.

Bello v. ABA Energy Corp. (2004) 121 Cal.App.4th 301, 318, discusses interpretation of a County permit. As set forth above, easements are generally interpreted in the same manner as contracts, and the interpretation of a contract is generally a legal question subject to de novo review. (*Morgan v. Board of Pension Comrs.* (2000) 85 Cal.App.4th 836, 843; see also *Shear Development Co., LLC v. California Coastal Com.* (2026) 19 Cal.5th 334, 349 [legal questions and application of law to undisputed facts generally subject to the court's de novo independent review].) To the extent there are disputed material facts, the Court must deny the motion under the summary judgment standard.

Defendants argue that the plain language of the Easement demonstrates that public access over Toro Lane was intended to be unlimited, as there is no specific limiting language in the Easement, and because the public access areas was expressly intended to accommodate "unlimited pedestrian volume" in addition to required vehicle parking improvements. (Ex. 6, County_00276.) Defendants claim that the fact that a new trail will be developed on public land to improve coastal access to and along the shoreline does not make the use outside of the scope of the existing public access easement over Toro Lane.

Plaintiff contends that the proposed project to accommodate the connector trail over Toro

Lane exceeds the scope of the Easement; that the Easement only contemplates a vertical easement allowing coastline access, not lateral access; and that the project would overburden the Easement and private rights of Plaintiff's members.

There is no ambiguity that the Easement allows public bike, pedestrian and vehicle access along its entire length and width, for the purposes of ingress and egress from the shoreline. (Ex. P-006, COUNTY_000266-267.)

The title of the Easement specifies that it is an "Easement for Vertical Public Access." (Ex. P-006, COUNTY_000264; Pontes Decl., ¶ 2; Ex. 1.) It specifies that it "shall have the effect of a grant of vertical access for pedestrian and vehicular ingress and egress easement in gross" (Ex. P-006, COUNTY_000267; Pontes Decl., ¶ 2; Ex. 1.) According to the City's Local Coastal Plan, lateral access describes the ability to move parallel to the coastline and along the shore, but vertical access points create perpendicular access to the coast. (Ex. P-015, p. 3-45.)

The Easement currently allows ingress and egress over Toro Lane to Lot 11 (ending, for vehicles, in a parking lot) and, from there, pedestrian access to the shoreline. It is described as affecting vertical access to the shoreline. The MBCTC would instead allow lateral bicycle and pedestrian through-traffic across Toro Lane. By common sense, this would change the use and lead to increased bicycle and pedestrian traffic and affect the burden on the servient tenement.

Parties to an express right-of-way easement presumptively contemplate normal future development, and such an easement will generally not be restricted to its historic use. (*Zissler, supra*, 29 Cal.App.5th at p. 641; see also *Red Mountain, LLC. v. Fallbrook Public Utility Dist.* (2006) 143 Cal.App.4th 333, 350 (*Red Mountain*).) However, unanticipated, abnormal uses, which greatly increase the burden, are not permissible.² (*Zissler, supra*, at p. 641.)

"Whether a particular use of an easement by either the servient or dominant owner unreasonably interferes with the rights of the other owner is a question of fact. [Citations.]" (*Red Mountain, supra*, 143 Cal.App.4th at p. 350.) The question whether a new use is excessive and amounts to a surcharge on the servient tenement, are issues of fact in each case. (6 Miller & Starr, Cal. Real Estate (4th ed. 2026) §§ 15:54, 15:55.)

Defendants contend that the mention of "unlimited pedestrian volume" is enough to show

² In *Zissler*, the trial court was directed to prepare a new judgment after trial that included a provision that "the easement may be used to the extent that the use is reasonably necessary for the convenient enjoyment of the easement and is consistent with the purpose for which the easement was granted, i.e., access, ingress and egress to vehicles and pedestrians over Grantors' real property from Green Meadows Road to Grantees' real property, **provided that the use does not unreasonably interfere with the enjoyment of, unreasonably damage, or materially increase the burden on the servient estate.**" *Zissler, supra*, 29 Cal.App.5th at pp. 645-646, emphasis added.)

that unlimited volume of pedestrian and bicycle traffic was anticipated across Toro Lane as a matter of law. However, the Staff Report attached as Exhibit B to the Easement states that the “proposal would provide for public access by way of utilizing the access road, on Lot 12 [Toro Lane] for the proposed homes for visitor access to the public parking area at the north end of the site by means of the access easement.” (Ex. 6, County_00276.) It further provides that the “proposed public access area will accommodate nine automobiles and unlimited pedestrian volume.” (Ex. 6, County_00276.)

The MBCTC project is a multi-use trail and the Easement and attached Staff Report do not discuss unlimited bicycle volume; moreover, the proposed “public access area” to which the Easement grants ingress and egress is a dead-end lot.

The Staff Report attached to the Easement explains that Lot 11, the public access area, which is accessed by the Toro Lane Easement, was proposed to be “offered for dedication to the City as a coastal access area and developed with a public parking lot and viewing area. Lot 13... is a bluff face and beach below: a stairway is proposed from the blufftop to the beach.” (Ex. 6, County_00276.)

The Staff Report for the current MBCTC project also recognizes that currently “Toro Lane is a dead-end street (that dead ends into a public parking lot, that will also facilitate use of the trail) that has low traffic volume and low speed.” (Moroney Decl., ¶ 2; Ex. 18, p. 22.) There is no mention in the Easement or the attached Staff Report of a contemplated future throughway over Toro Lane.

Defendants argue that extrinsic evidence supports their interpretation that the scope of the Easement includes the MBCTC, including the dedications for Lots 11 and 13, the Commission’s Interpretive Guidelines and the city’s Local Coastal Program and General Plan. (See Defendants’ Mtn., pp. 20-25.)

However, while the cited evidence generally discusses maximum access to the shoreline and recreational activities, bicycle access or a bikeway plan for the City and along the coast, that evidence does not show that when the Easement was recorded it was anticipated that Lot 12/Toro Lane would be included in a future through-pedestrian or bicycle path (rather than, as now, bicycle access that ends in a dead-end). For example, the Bikeway Plan for the City represented in Figure 11 and cited by Defendants appears to avoid Toro Lane and proceed instead on the opposite side of Highway 1. (Singewald Decl., ¶ 3; Ex. 15.)

In their opposition to Plaintiff’s motion, Defendants also contend that subdivision developers knew that a Class I bicycle lane might be required or implemented in the future. (Defendants’ Opp. pp. 9-13.) However, again, while a coastal bikeway may have generally been contemplated, this does not establish that the developer here necessarily anticipated a bikeway along Toro Lane. If future lateral through-access had been contemplated, that could have been specified in the Staff Report. Therefore, the extrinsic evidence cited by Defendants is insufficient to show that such a use was contemplated for the Easement as a matter of law.

It is common sense that connecting Toro Lane, which currently ends in a dead-end, to a through-way connector trail will increase the volume of pedestrian and bicycle traffic over the Easement. While the vertical Easement plainly allows public access, including unlimited pedestrian access, to Lot 11 for purposes of accessing the shoreline, whether unlimited multi-use through-access across Toro Lane was contemplated and the extent to which the burden on the servient tenement would be increased is a question of fact.

No expert evidence was presented by any party, nor were any studies or any other competent evidence presented showing the impact of the project on the Easement. Moreover, the Court reviewed the authorities cited by both parties and could not find a single case wherein summary judgment was granted on an analogous easement-related issue or set of facts.

Defendants, as the moving parties on their motion, have the burden to produce evidence to conclusively negate Plaintiff's claims or show that Plaintiff does not have, and cannot reasonably obtain, necessary information. Defendants have not shown, as a matter of law, that a through-way over Toro Lane was contemplated. Moreover, Plaintiff specifically alleges that the project will overtax and excessively impact its Easement, yet Defendants fail to provide any evidence to address this allegation. No evidence is submitted regarding the burden on the Easement from the project, or any evidence that potential increased pedestrian and bicycle access will not block homeowners from entering and exiting their homes or dramatically increase the burden on the servient tenement.

Plaintiff, as the moving party on its motion, also fails to provide evidence to meet its prima facie burden. The conclusory declaration of the president of the HOA, Karl Levy, is speculative and insufficient to show that the project would in fact overtax the Easement or block the homeowners from entering and exiting their properties.

The Court finds triable issues of material fact preclude granting summary judgment/summary adjudication in favor of either Plaintiff or Defendants on the first and second causes of action in the SAC.

ORDER

Plaintiff's motion for summary judgment/summary adjudication is denied.

Defendants' motion for summary judgment/summary adjudication is denied.